

Court No. - 29

Case :- WRIT - C No. - 33214 of 2024

Petitioner :- Sita Ram

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Sanjai Singh, Yashwant Pratap Singh

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Vivek Kumar Birla, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard Sri Yashwant Pratap Singh, learned counsel for the petitioner, Sri Pankaj Rai, the learned Additional Chief Standing Counsel appearing for the State-respondent and Sri Udit Chandra, learned counsel appearing for the respondent nos. 2 and 3, the Executive Engineer, Electricity Distribution Division-1st, Puranchal Vidyut Vitran Limited, Ghazipur and the Sub-Divisional Officer, Electricity Distribution Division -1st, Purvanchal Vitaran Limited, Ghazipur, respectively.

2. The present petition has been filed primarily seeking quashing of the Recovery Notice dated 05.01.2024 issued by the respondent No. 2, the Executive Engineer, Electricity Distribution Division-1st, Puranchal Vidyut Vitran Limited, Ghazipur. Further, the petitioner, by way of the present petition, has prayed for a direction to the respondent authority, restraining them from harassing the petitioner pursuant to the aforesaid notice for recovery of illegal demand of penalty of Rs.4,12,530/- as well as summon fees to the tune of Rs.1,00,000/-, from the petitioner, without providing any assessment. Additionally, the petitioner by way of the present petition has prayed for a direction to the respondents to take appropriate decision upon the application dated 15.04.2024, within a stipulated time period, pending before

them.

3. Counsel appearing for the respondent Nos. 2 and 3 has pointed out that it is case of electricity theft, however, the petitioner has been issued a fresh notice dated 21.10.2023 requiring him to furnish his objection, if any, to the provisional assessment made earlier, within a period of seven days. It is submitted that the in case the petitioner submits his objection, the concerned authority would consider the same before passing the final assessment order. The copy of the fresh notice has been served upon the counsel for the petitioner today and the same is taken on record.

4. In view of the above, it is expected that in case the petitioner furnishes his response/objection to the aforesaid notice within a period of 10 days, the respondent authorities would consider the same before the final assessment order is passed.

5. However, in case the final assessment order has already been passed, the petitioner would be at liberty to challenge the same under Section 127 of the U.P. Electricity Supply Code, 2005.

6. The petition stands **disposed of** accordingly.

Order Date :- 6.12.2024

Arun K. Singh